

26NWCV00310 26NWCV00310

County: los-angeles

Division: Civil Law and Motion

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Hearing date: 2026-08-20

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Case Number: 26NWCV00310 Hearing Date: August 20, 2026 Dept: D

#17

TENTATIVE ORDER

Plaintiff's motion to compel further is GRANTED. Defendant is ordered to provide a further response within 20 days of this order.

Plaintiff's request for sanctions is GRANTED in the reduced amount of \$860. Defendant and counsel of record are ordered to pay sanctions in the amount of \$860, jointly and severally, to Plaintiff's counsel within 20 days of this order.

Moving party to give notice.

Plaintiff Tina Perez (Plaintiff) moves to compel Defendant Lucille Luna's further response to Form Interrogatories. Plaintiff also seeks monetary sanctions against Defendant and Defendant's counsel.

Background

This is a personal injury action. On January 26, 2026, Plaintiff filed the complaint against Defendants Gilbert Tarango and Lucille Luna, asserting causes of action for Motor Vehicle and General Negligence.

On July 2, 2026, Plaintiff filed this motion to compel further responses to form interrogatories.

On August 7, 2026, Defendant filed an opposition.

On August 13, 2026, Plaintiff filed a reply.

Legal Standard

On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that (1) an answer to a particular interrogatory is evasive or incomplete, (2) an exercise of the

option to produce documents under CCP section 2030.230 is unwarranted or the required specification of those documents is inadequate, or (3) an objection to an interrogatory is without merit or too general. (CCP § 2030.300(a).) The responding party has the burden of justifying the objections thereto. (Coy v. Sup.Ct. (1962) 58 Cal.2d 210, 220-21.)

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc., § 2030.220, subd. (a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (Code Civ. Proc., § 2030.220, subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc., § 2030.220, subd. (c).)

Trial courts are vested with “wide discretion” to allow or prohibit discovery. (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.) Further, to the extent there is any doubt in whether these records should be discoverable, California’s liberal approach to discovery provides that doubt should be resolved in favor of permitting discovery. (Pacific Tel. & Tel. Co. v. Superior Court (1970) 2 Cal.3d 161, 173.)

Discussion

Plaintiff seeks a further response of Form Interrogatory No. 16.1, arguing the response is deficient.

FORM INTERROGATORY NO. 16.1:

(a) state the name, ADDRESS, and telephone number of the PERSON;

(b) state all facts upon which you base your contention;

(c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have

knowledge of the facts; and

(d) identify all DOCUMENTS and other tangible things that support your contention and state

the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or

thing.

Defendant’s response:

Unknown at this time, however, Defendant anticipates such a contention may be raised pending review of Plaintiff’s medical documentation and/or an examination of Plaintiff by an independent expert. As such, until such information can be reviewed, Defendant reserves the right to make such a contention at the time of trial as may be supported by the facts.

Plaintiff argues that Defendant’s response to the Judicial Council approved Form Interrogatory No. 16.1 is evasive and not code-compliant. The interrogatory asks whether Defendant presently contends that any person other than Defendant or

Plaintiff contributed to the occurrence of the incident or Plaintiff's claimed injuries or damages and, if so, to identify the supporting facts, witnesses, and documents.

"If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."¿ (Code Civ. Proc., § 2030.220, subd. (c).)¿

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Defendant's response contains no representation that any reasonable or good faith inquiry was conducted. Thus, the Court grants the motion.

Sanctions

Code of Civil Procedure 2030.300(d) provides for mandatory monetary sanctions "against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response..., unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300(d).)

Defendant argues that it acted with substantial justification because it served a response based on information then known and available. Defendant also argues she engaged in the meet and confer process. But Defendant has not provided substantial justification as to why Form Interrogatory 16.1 could not be supplemented. All Defendant had to do was represent that she made reasonable or good faith inquiry.

As the motion is granted, and Defendant failed to provide any justification for the failure to provide further responses, Plaintiff's request for sanctions is granted, but in a significantly reduced amount due to the straightforward nature of this motion. As a result, the court imposes sanctions against Defendant and counsel of record in the amount of \$860 (\$800 per hour, for 1 hour, plus \$60 in filing fees), to be paid to Plaintiff's counsel within 20 days of this order.

Conclusion

The Court GRANTS Plaintiff's motion to compel further. Defendant is ordered to provide a further response within 20 days of this order.

The Court GRANTS Plaintiff's request for sanctions in the amount of \$860. Defendant and counsel of record are ordered to pay sanctions in the amount of \$860, jointly and severally, to Plaintiff's counsel within 20 days of this order.